

Well Inspection Agreement

THIS IS A LEGALLY BINDING CONTRACT: Please read this contract carefully. This contract limits the liability of the well inspector.

Client:

Inspection Date:

Standard Well Inspection agreement:

1. The inspection to be performed for the client consists of non-intrusive visual observations to survey the well condition and components. The inspection is designed to survey deficiencies and/or repairs necessary that exist at the time of inspection. The well inspection report incorporates the information obtained during the inspection process. The well inspection report is for the sole use and benefit of the client. The client agrees to read the inspection report when it is received and call the inspector promptly with any questions or concerns regarding the well inspection report. The well inspection report shall be considered the final and exclusive findings of the inspector regarding the inspection of the well. The client shall not rely on any oral statements made by the inspector.
2. The well system components operated during the inspection will be identified in the inspection report. The identified components and systems shall be operated with normal user controls only, as conditions permit. If a component of system of the well is operated, it will be done so without exploratory probing, removing of well components for testing, pulling well pumps, manipulation of filtration systems. The scope of the well inspection is function or not function without regard to adequacy.
3. When a well inspection is performed, a substantial amount of water is used during the process to determine the functionality. Because of the amount of water used during the inspection to check the well system, sediment, discolored water and iron can be stirred up within the well itself, and can present in the home in sinks, toilets, showers and bathtubs. This is an expected occurrence after a well inspection and is uncontrollable by the inspector. We are not responsible for the remedy of the sediment and/or discolored water. Our company is also not responsible for failure of an element of the well system after the inspection has been completed.
4. The role of the inspector is to gather information and present the information to the licensed well contractor for completion of the inspection report.
5. No well inspection can wholly eliminate the uncertainty regarding deficiencies or unforeseen issues within the well system. Preparation of the inspection report in accordance with this contract is intended to reduce, but not eliminate, the uncertainty regarding well system issues or failure. The client recognizes the inherent subjective nature of the inspector's opinion as to issues found or not found during the inspection process. The inspector's opinions generally are formed without detailed knowledge from those specifically familiar with the components or systems performance.
6. The inspection report will contain a representative indication of the well system condition at the time of the inspection and is dependent on the information available to the inspector at that time.

7. Well Production- The well production is obtained by a pump test. The water levels are read during the process and a well production is determined. The well production is only indicative of how much the well is producing at the time of the inspection. The well production can increase or decrease overtime. The well production test also does not determine when or if the well production will decrease, increase or decrease. OUR COMPANY IS NOT LIABLE FOR A DECREASED OR DECREASED WATER PRODUCTION WITHIN THE WELL.
8. Confidential report- The inspection report prepared for the client is solely and exclusively for the Client's own information and may not be relied upon by any other person. Client agrees to maintain confidentiality of the inspection report and agrees not to disclose any part of it to another person. Client may distribute copies of the inspection report to other persons directly involved in this transaction, but the client and inspector do not in any way intend to benefit said other persons directly or indirectly through this contract, the inspection or the inspection report.

THE CLIENT AGREES TO INDEMNIFY, DEFEND AND HOLD THE INSPECTOR, AND OUR COMPANY (A 1ST CHOICE WELL SERVICE, INC.) HARMLESS FROM ANY CLAIMS ARISING FROM A WELL INSPECTION, INCLUDING LEGAL MATTERS.

General Provisions

- A. This inspection contract, inspection, and the inspection report do not constitute as a warranty, guarantee, or insurance policy of any kind.
- B. In the event that a client discovers an issue with the well system that was not identified by the inspector, the client shall notify our company in writing and allow the inspector and/or the inspector's designated representative to reinspect and document the condition(s) of the system prior to making any repairs or alterations.
- C. Should any provision of this contract be held by a court of competent jurisdiction to be invalid or unenforceable, the remaining provisions of this contract shall remain in full force and effect, unimpaired by the court's holding.
- D. This contract shall be binding upon and insure to the benefit of only the undersigned parties and their heirs, successors, and assigns.
- E. This contract constitutes the entire integrated agreement between the parties hereto pertaining to the subject matter hereof, and may be modified only by a written agreement signed by all the parties hereto. No oral agreements, understandings, or representations shall change, modify, or amend any part of this contract.
- F. Each party signing this contract warrants and represents that he/she has the full capacity and authority to execute this contract on behalf of the named party whether it is a corporation, partnership, or other entity. If this contract is executed on behalf of a client by a third party, person executing this contract expressly represents to the inspector that he/she has the full and complete authority to execute this contract on the client's behalf and to bind the client fully and completely to all the terms, conditions, limitations, exceptions, and exclusions of this contract.
- G. **Payment:** The client agrees that payment is due on the inspection date. The client also agrees to a cancellation fee of \$150.00 will be paid if the inspection is cancelled within 24 hours of the inspection date and time. If a credit card is used for payment, processing fees will be added to the cancellation fee and well inspection total.

I have read, understand, and agree to all the terms and conditions of this contract, and agree to pay the fees listed above.

Date:

Signature of client:

Printed name of client: 

Elizabeth M Carmichael